BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON

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OFFICE OF THE BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON
BLANCHARD EDUCATION SERVICE CENTER
PORTLAND, OREGON

MARCH 14, 2005

The regular business meeting of the Board of Directors came to order at 6:30 p.m. on the above date at the call of Chairperson Wynde. There were present:

Julia Brim-Edwards
Derry A. Jackson, Sr. -- *absent*
Doug Morgan
Lolenzo Poe
Bobbie Regan
Dilafruz Williams
David Wynde

Suleima Cortez, Student Representative

Vicki L. Phillips, Superintendent
Jollee Patterson, General Counsel/Board Secretary
Julie Joel, Executive Assistant, PPS Board of Education

Personnel

The Superintendent RECOMMENDED adoption of the following numbered items:

Numbers 3235 through 3238

Director Morgan moved adoption of the above-numbered items. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson absent from voting.

Leaves of Absence

3235 RESOLVED, That the following leaves of absence be granted:

Name	*School*	*Effective*	*Reason*
Bancroft, Cinnamon	Atkinson	02/10/05 to 06/16/05	Child Care
Boland, Richard	John Ball	02/01/05 to 06/16/05	Personal
Crofts, Allie	Beach	01/18/05 to 06/16/05	Restoration of Health/Illness
Hilbourne, Amber	Skyline	02/15/05 to 04/10/05	Child Care
Martin, Dawn	Ockley Green	01/10/05 to 01/23/05	Personal
McSwiggen, Margaret (.20 FTE Leave of Absence)	Joseph Meek	09/08/04 to 06/16/05	Restoration of Health/Illness
Tarnowski, Ivan	Tubman	02/15/05 to 03/27/05	Child Care
Taylor, Erin	Ainsworth	02/14/05 to 06/16/05	Child Care
VanEngelen, Krista	Harvey Scott	01/31/05 to 06/16/05	Restoration of Health/Illness

Administrator-Teacher Resignations

3236 RESOLVED, That the following resignations be accepted**:**

Name	*School/Program*	*Effective*	*Reason*
Copeland, Edith	Portsmouth	02/01/05	Performance Issues
Lee, Jean	Hosford MS	03/01/05	Retirement
Meier, Larry	BESC	02/13/05	Deceased
Soliday, Sharon	BESC	01/07/05	Personal

Ratifying Appointments and Notice of Nonrenewals

3237 RESOLVED, That the Board of Education of School District No. 1J,. Multnomah County, Oregon approves, ratifies, and adopts the action of the Superintendent designating the following individuals as temporary teachers at the salary schedule rates shown below; and be it further

RESOLVED, That the Board does not intend to renew the contract of the following individuals after the termination date stated below because the assignments are temporary, and, therefore, the Board does not require the services of the individuals after the completion of the temporary assignments.

Name	Dept.	Grade or Subject	Fund Location	Salary Schedule	Effective Date	Term. Date
Allen, Kelly	Franklin	Science	101 215	L01 805 03 1.0 FTE	01/31/05	06/16/05
Eide, Jacob	Benson	School Psychologist	101 419	L01 808 03 1.0 FTE	02/02/05	06/16/05
Foster, Brian	Rigler	2nd Grade	101 276	L01 801 03 1.0 FTE	01/03/05	06/16/05
Gaitan, Kathleen	Kenton	ESL/Bilingual	101 408	L01 801 04 1.0 FTE	01/18/05	06/16/05
Knab, Christine	Forest Park	3rd-5th Grade Lit. Support	299 152	L01 805 14 0.4 FTE	01/24/05	06/16/05
Meyer, Claudia	Rosemont	Speech Path	205 951	L01 808 03 1.0 FTE	01/18/05	06/16/05
Miller, Tara	Jackson	ESL/Bilingual	101 408	L01 801 03 1.0 FTE	02/01/05	06/16/05
Oldham, Derek	Portsmouth	6th Grade LA/SS/RDG	205 182	L01 805 03 1.0 FTE	01/28/05	06/16/05
Shipley, Kathleen	Atkinson	2nd Grade Immersion	101 234	L01 803 03 0.5 FTE	01/20/05	06/16/05
Sparling, Julie	Ball	Drama K-5	102 138	L01 806 03 0.5 FTE	02/01/05	06/16/05
Stone, Deborah	Beach	Kindergarten	101 140	L01 801 03 1.0 FTE	01/18/05	06/16/05
Weyer, Julie	Rose City Park	Kindergarten	101 278	L01 801 03 1.0 FTE	01/18/05	06/16/05
Wilborn, Carl	Hayhurst	5th Grade	101 160	L01 801 03 1.0 FTE	01/18/05	04/18/05

Rescission of Employment Status Change

3238 RESOLVED, That so much of Board Action # 3160, dated December 13, 2004 pertaining to the Change in Employment Status for Leila Ghodsi be rescinded.

Expenditures

The Superintendent RECOMMENDED adoption of the following items:

Numbers 3239 through 3240

Director Morgan moved adoption of the above-numbered items. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson and Student Representative absent from voting.

Payment for Professional Services
Legal Services

3239 RESOLVED, That authority be granted to pay the following professional service providers:

Payee	Description	Date	Amount	Fund
Miller, Nash, Wiener, Hager & Carlsen	Legal Services, General Matters	Services through 1/31/05	$10, 253.35	Fund 101 Org. #5528
Miller, Nash, Wiener, Hager & Carlsen	Legal Services, Labor Litigation	Services through 12/31/04	$7,656.43	Fund 101 Org. #5528

(J. Patterson)

Authorizing Settlement Agreement
A.B. vs. Portland Public Schools

3240 RESOLVED, That authority of $37,001.24 be granted in exchange for a full and final release in a settlement agreement in a form approved by General Counsel; and be it further

RESOLVED, That the Deputy Clerk is authorized to execute on behalf of the District a settlement agreement and release which resolves all claims in the amount and terms set forth in the settlement agreement, a copy of which is on file in the Office of the Deputy Clerk. Costs to be charged to101-5414-23292-32000. (*C. Bull)*

Other Matters Requiring Board Action

The Superintendent RECOMMENDED adoption of the following items:

Numbers 3241 through 3255

Director Morgan moved adoption of the above-numbered items, with the exceptions of Board Actions 3243, 3244 and 3250-3255 which were voted on during the Committee of the Whole. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson and Student Representative absent from voting.

During the Committee of the Whole, Vice Chairperson Regan moved adoption of Board Action 3243. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson and Student Representative absent from voting.

During the Committee of the Whole, Chairperson Wynde moved adoption of Board Action 3244. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson and Student Representative absent from voting.

During the Committee of the Whole, Director Brim-Edwards moved adoption of Board Action 3250. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Director Brim-Edwards moved adoption of Board Action 3251 as amended. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no); Director Jackson absent from voting; Student Representative voting no, unofficial.

During the Committee of the Whole, Chairperson Wynde moved adoption of Board Action 3252 as amended. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0- no); Director Jackson absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Chairperson Wynde moved adoption of Board Action 3253. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0- no); Director Jackson absent from voting; Student Representative voting yes, unofficial.

During the Committee of the Whole, Chairperson Wynde moved adoption of Board Action 3254. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0- no); Director Jackson and Student Representative absent from voting.

During the Committee of the Whole, Director Poe moved adoption of Board Action 3255 as corrected. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0- no); Director Jackson and Student Representative absent from voting.

Revenue Contracts that Exceed $25,000 Limit for Delegation of Authority

3241 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve revenue where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Description of Services*	*Fund/Grant/ Dept. ID. #*	*Amount*	*Resp. Admin.*
Portland Community College	03/01/05 through 09/14/05	Portland Community College to partner with PPS for research and professional development around the establishment, implementation, ongoing operations, and evaluation of a PPS/PCC Middle College on the Jefferson Campus.	Fund 205	$15,000	L. Dashiell

Expenditure Contracts that Exceed $25,000 Limit for Delegation of Authority

3242 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve payment for products, materials, supplies, capital outlay, equipment and services where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Maizels Abbott Design Collaborative, Inc.	02-18-05 Through 06-30-05	Personal / Professional Services Contract Amend #4 Contract # PS 52702	Space planning and move management and provide an estimate for all costs involved in proposed school changes	Fund 101 Dept 5591	$15,000	$193,172	P Brown

Contractor	*Term of Service*	*Type of Contract*	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Shiels Obletz Johnson, Inc.	10-01-04 Through 02-28-05	Personal / Professional Services Contract Amend #3 Contract # PS 52283	Additional services related to feasibility study for relocation of the BESC	Fund 101 Dept 5591	$15,000	$90,000	P Brown
American Heating, Inc.	03-01-05 Through 12-31-05	Construction Contract Contract # C53509	Additional scope of work for the Air Conditioning Installation at Wilcox Site	Fund 205 Dept 5414 Grant G0471	$17,515	$187,515	P Brown
Computer Technology Link, Inc.	03-01-05	Purchase Order #45020	Administrator workstations and monitors for the Marshall Campus.	Fund 205 Dept 3320 Dept 3322 Dept 3621 Grant 0580	$77,500	$895,217	S Robinson
MKE & Associates	03-01-05 Through 10-01-05	Personal/ Professional Services Contract	Design services for dishwasher installations at various sites	Fund 402 Dept 5414	$45,000	$45,000	J Devers
PBS Engineering and Environmental	07-01-01 Through 06-30-05	Personal/ Professional Services Contract Amend #13 Contract # PS 50593	Continued environmental consulting services district wide	Fund 402 Fund 403 Dept 5591	$50,000.00	$207,478.92	P Brown
PBS Engineering and Environmental	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53511	Environmental consulting services for the abatement & demolition of the Rose City Park Portable	Fund 402 Dept 5591	$21,100	$228,578	P Brown
Vickers Nelson and Associates	03-14-05 Through 02-01-06	Personal/ Professional Services Contract	Provide Project Management Services for the 2005 Lead Paint Abatement Project – Multiple Sites	Fund 402 Fund 403 Dept 5591	$12,000	$116,067	P Brown

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Cornerstone Construction Management Inc.	03-14-05 Through 02-01-06	Personal/ Professional Services Contract Contract # PS-53512	Provide Project Management Services for the Summer 2005 Construction Projects	Fund 402 Fund 403 Dept 5591	$50,600	$205,550	P Brown
Architects Barrentine Bates Lee	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53513	Provide Architectural and Design services for the Jackson Fireproof Abatement Project	Fund 402 Dept 5591	$38,500	$156,745	P Brown
PAE Consulting Corp.	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53514	Provide engineering services for the Bridger Water Pipe Replacement Project	Fund 402 Dept 5591	$26,950	$40,008	P Brown
PAE Consulting Corp.	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53515	Provide engineering services for the Rose City Park Kitchen Water Pipe Replacement Project	Fund 402 Dept 5591	$10,780	$50,788	P Brown
PAE Consulting Corp.	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53516	Provide engineering services for the Roosevelt Backflow Prevention Device Project	Fund 402 Dept 5591	$ 8,250	$59,038	P Brown
PAE Consulting Corp.	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53517	Provide engineering services for the Portsmouth Boiler Room Water Pipe Replacement Project	Fund 402 Dept 5591	$16,225	$75,263	P Brown
PAE Consulting Corp.	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53518	Provide engineering services for the Capital Hill Boiler Room Water Pipe Replacement Project	Fund 402 Dept 5591	$14,025	$89,288	P Brown

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Environmental and Engineering Services Inc.	03-14-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS-53519	Provide engineering services for the Jefferson Boiler Upgrade Project	Fund 402 Dept 5591	$8,500	$118,667	P Brown
Portland State University – Continuing Education	03-29-05 Through 06-30-05	Personal/ Professional Services Contract Contract # PS-53508	ESL/Bilingual Endorsement course work for continuing education graduate school of education at PSU	Fund 205 Dept 5408 Grant G0358	$14,000	$140,500	C Leonard
Reliant Elevator Company	04-01-05 Through 03-31-06	Services Contract Amendment #2 Contract # SR 52133	Extension of contract for one additional year.	Fund 101 Dept 5592	$100,000	$344,706	P Brown
Marilyn Crawford	02-01-05 Through 09-30-06	Personal/ Professional Services Contract Rescinded: contractor unavailable for service	Teacher coaching and curriculum instruction	Fund 205 Dept 2288	$60,000	$60,000	M Davalos
Multnomah Education Service District	07-01-04 Through 06-30-05	Intergovern-mental Agreement (IGA) Contract # IGA 53526	Early intervention and early childhood special education evaluation service.	Fund 101 Dept 5414	$860,467	$11,998,469	M Kilcrease
SSB Enterprises, LLC	03-14-05 Through 06-30-05	Small Construction Services Contract Contract # C-53531	East Sylvan - Installation of a drain from the field to the catch basin	Fund 402 Dept 5591	$10,000.00	$35,408.00	P Brown

Discontinue Preparation of Debt Service General Obligation Bond Levy

3243 WHEREAS, On February 14, 2005 the Board of Directors of Portland Public Schools approved Board Action 3216 directing the administration to take the necessary steps to prepare for a Debt Service General Obligation Bond Levy; and

WHEREAS, The levy would have been slated for the May 2005 election; and

WHEREAS, Any vote taken outside of an even-numbered November election would require a "double majority" as stated in the Oregon Constitution; and

WHEREAS, Portland Public Schools voters have strongly supported local funding measures, as evidenced by voter support approaching or exceeding 60 percent, most recently in November 2004; and

WHEREAS, Voter registration for the November 2004 election increased by 20 percent due to strong voter registration drives related to ballot measure campaigns and the presidential election; and

WHEREAS, The greatly increased voter registration makes the likelihood of sufficient voter turnout to achieve the "double majority" unlikely in May of 2005, when few contested elections or other matters of wide public interest are before the voters; and

WHEREAS, The lack of a Debt Service General Obligation Bond Levy and exhaustion of the Portland Public Schools Capital Fund will require the General Fund to pay for critical capital renovation and replacement projects; therefore be it

RESOLVED, That the Board of Directors of Portland Public Schools will pursue an active strategy to achieve greater state funding for our schools, and increased options for local communities to support their school districts; and be it further

RESOLVED, That the Board of Directors of Portland Public Schools hereby directs the administration to discontinue all necessary steps to prepare for a Debt Service General Obligation Bond Levy; and be it further

RESOLVED, That the Board of Directors of Portland Public Schools will not pursue a Debt Service General Obligation Bond Levy in the May 2005 election.
(H. Franklin)

Discontinue Preparation of Local Option Levy

3244 WHEREAS, On February 14, 2005 the Board of Directors of Portland Public Schools approved Board Action 3217 directing the administration to take the necessary steps to prepare for a Local Option Levy; and

WHEREAS, The levy would have been slated for the May 2005 election; and

WHEREAS, Any vote taken outside of an even-numbered November election would require a "double majority" as stated in the Oregon Constitution; and

WHEREAS, Portland Public Schools voters have strongly supported local funding measures, as evidenced by voter support approaching or exceeding 60 percent, most recently in November 2004; and

WHEREAS, Voter registration for the November 2004 election increased by 20 percent due to strong voter registration drives related to ballot measure campaigns and the presidential election; and

WHEREAS, The greatly increased voter registration makes the likelihood of sufficient voter turnout to achieve the "double majority" unlikely in May of 2005, when few contested elections or other matters of wide public interest are before the voters; and

WHEREAS, The legal responsibility for funding Oregon K-12 school operations rests with the Governor and the Legislature, which has not yet decided a proposed State School Fund level for 2005-07, creating a climate of financial uncertainty at the time of the May 2005 election; therefore be it

RESOLVED, That the Board of Directors of Portland Public Schools will pursue an active strategy to achieve greater state funding for our schools from the 2005 Legislature and to increase options for local communities to support their school districts; and be it further

RESOLVED, That the Board of Directors of Portland Public Schools hereby directs the administration to discontinue all necessary steps to prepare for a Local Option Levy; and be it further

RESOLVED, That the Board of Directors of Portland Public Schools will not pursue a Local Option Levy in the May 2005 election.

(H. Franklin)

Appointment of Citizen Budget Review Committee Members

3245 WHEREAS, Several members of the Citizen Budget Review Committee are continuing through the second year of their terms; and

WHEREAS, The Board of Education's Finance, Audit and Operations Committee recommends that new members for the Citizen Budget Review Committee should be selected; therefore be it

RESOLVED, That the mission of the Citizen Budget Review Committee is to review, evaluate and make recommendations to the Board on the Superintendent's proposed budget and any other issues identified by the Board; and be it further

RESOLVED, That while the Board provides the specific charge to the Citizen Budget Review Committee, the Board's Finance, Audit and Operations Committee can assign additional projects for the Citizen Budget Review Committee; and be it further

RESOLVED, That members of the Citizen Budget Review Committee are encouraged to avoid conflicts of interest or any appearance of impropriety in exercising their role as members of the Citizen Budget Review Committee. The Board recognizes that District employees and others bring special knowledge and expertise to the Citizen Budget Review Committee process. However, the Board instructs all members of the Citizen Budget Review Committee to exercise caution in carrying out their duties or making recommendations from which they may personally benefit; and be it further

RESOLVED, That the following named persons be appointed for membership to the Citizen Budget Review Committee for the period beginning January 1, 2005 and ending June 30, 2006:

Michael Bailey
Colleen Davis
Will Fuller
Gretchen Hollands
Doug Wells
Tim Woods

(H. Franklin)

Amended 2004-2005 Budget

WHEREAS, There are additional requirements for salary increases and benefits for employees that were established after the 2004-2005 General Fund budget was adopted; and

WHEREAS, The Board of Education has indicated that these increased requirements should be met by transfers from Contingency; and therefore be it

RESOLVED, That the legally authorized appropriations for the for the fiscal year beginning July 1, 2004, and ending June 30, 2005, are hereby amended as follows:

General Fund

Requirements	**Adopted** Budget 2004-05	**Increase** (Decrease)	**Amended** Budget 2004-05
Instruction	223,249,801	1,782,533	225,032,334
Supporting Services	142,573,478	1,884,222	144,457,700
Fund Transfers	18,277,746	0	18,277,746
Debt Service	1,010,384	0	1,010,384
Contingency	11,580,883	(3,666,755)	7,914,128
Total Requirements	$396,692,292	0	$396,692,292

(H. Franklin)

Amendments of Appropriations for the Cafeteria Fund 2004-2005

3247 WHEREAS, There are additional requirements for Health and Welfare benefits for the classified employees who are members of SEIU established after the 2004-2005 budget was adopted, and

WHEREAS, The beginning fund balance for the Cafeteria Fund was greater than expected, and

WHEREAS, Reporting the resources and requirements for the Summer Breakfast and Lunch Programs as a separate program makes the presentation of the Cafeteria Fund more clear and informative; and therefore be it

RESOLVED, That the legally authorized appropriations for the for the fiscal year beginning July 1, 2004, and ending June 30, 2005, are hereby amended as follows:

Cafeteria Fund	**Adopted**	**Change**	**Amended**
(Fund 202)			
Resources			
Beginning Fund Balance	750,000	206,440	956,440
Lunch Revenues	3,802,478	1	3,802,479
Contracts & Other Sales	261,600	-	261,6000
Federal Reimburse-Breakfast	4,699,482	61,000	4,720,482
Federal Reimburse-Lunch	5,676,950	304,000	5,980,950
Federal Reimburse-Snacks	63,166	-	63,166
Interfund Transfer	22,000	-	22,000
Total Resources	15,235,676	571,440	15,807,117
Requirements			
Enterprise & Community Svcs	14,960,575	571,441	15,532,016
Ending Fund Balance	275,101	-	275,101
Total Requirements	15,235,676	571,441	15,807,117

(*H. Franklin)*

Amendments of Appropriations for the BESC Cafeteria Fund 2004-2005

WHEREAS, There are additional requirements for Health and Welfare benefits for the classified employees who are members of SEIU established after the 2004-2005 budget was adopted, and

WHEREAS, The BESC Cafeteria Fund is expecting greater Special Functions revenue than originally budgeted; and therefore be it

RESOLVED, That the legally authorized appropriations for the for the fiscal year beginning July 1, 2004, and ending June 30, 2005, are hereby amended as follows:

BESC Cafeteria Fund (Fund 203)	**Adopted**	**Change**	**Amended**
	Resources		
Beginning Fund Balance	9,700	-	9,700
A la Carte Sales	312,243	-	312,243
Special Functions	286,064	14,393	300,457
Total Resources	608,007	14,393	622,400
Requirements			
Enterprise & Community Svcs	594,942	14,393	609,335
Ending Fund Balance	13,065	-	13,065
Total Requirements	608,007	14,393	622,400

(H. Franklin)

Acceptance of the Feasibility Study for the Relocation of Central Support Services

3249 WHEREAS, The District as part of its strategic planning process and its continuing efforts to optimize the alternative use of valuable properties initiated a Project Team let by Shiels Obletz Johnsen and included GBD Architects and the Kalberer Company to conduct a Feasibility Study for the relocation of the Central Support Services; and

WHEREAS, The purpose of the Feasibility Study was to examine the feasibility and financially sound options for the District to relocate the central support services located in the Blanchard Education Service Center (BESC); and

WHEREAS, The initial scope of the study was expanded to include the possibility of redeveloping the existing BESC site with principal administrative functions remaining at the location and ancillary services such as the central kitchen, warehouse and maintenance being relocated elsewhere; and

WHEREAS, The Board of Directors recognizes that the District needs to continue in its efforts to optimize the alternative use of valuable properties; therefore be it

RESOLVED, That the Board of Directors accepts the Feasibility Study for the Relocation of Central Support Services Final Report as presented on February 14, 2005; and be it further

RESOLVED, That the subject be referred to the Real Estate Trust whereby the Trust will pursue options for redevelopment of the property and provide an annual status report to the Superintendent and Board of Directors; and be it further

RESOLVED, The Board of Directors directs the Superintendent and staff to review alternatives for the central kitchen, warehouse, and maintenance services and provide a report by June 30, 2005. *(H. Franklin)*

Ash Street Boundary Alignment

WHEREAS, The boundary between the Franklin and Grant clusters runs down the middle of Ash Street between 39th and 44th Streets affecting approximately 15 school-aged students who are not in the same feeder pattern as their neighbors across the street; and

WHEREAS, This boundary was established in 1981 when Washington-Monroe High School was closed, resulting in approximately 33 sections of the Franklin boundary that are less than 2 blocks long and run down the middle of the street; and

WHEREAS, Neighbors raised their concerns about the inflexibility of the boundary in combination with the new School District policy on feeder patterns; and

WHEREAS, The School Board understands that having students across the street from each other attending the same school engenders closer student, community and neighborhood relations; therefore be it

RESOLVED, That the Board of Education directs the Superintendent to realign the Ash Street Boundary between 39th and 44th Streets to be included as part of the Grant cluster; and be it further

RESOLVED, That the Board of Education directs the Superintendent to identify similarly situated properties in other areas of the School District and to develop a consistent policy concerning the borders of school boundaries to spell out a remedy for similar situations as they are identified. *(B. Farver / J. Patterson)*

Edwards Elementary School Closure and
Merger with Abenerthy Elementary School

WHEREAS, In 1963, the District had 79,571 students and the District currently enrolls 48,029 students with the Portland State University Population Center forecasting that enrollment will decline further to 44,373 by 2015; and

WHEREAS, Between 1968 and 1983, the School District closed 25 facilities and in the past three years closed an additional six buildings, including four schools; and

WHEREAS, By Resolution 2601, on March 10, 2003, the Board of Education endorsed a facilitated community analysis with the goal of closing at least one facility in the Franklin/Cleveland area while preserving educational options available to students; and

WHEREAS, The Board of Education of Portland Public Schools and the Superintendent jointly developed an Enrollment Data Analysis process earlier this school year to consider the impact of enrollment changes on District schools and the need for possible changes in instructional programs and structures in response to this enrollment data in order to maintain and enhance the School District's ability to deliver on its educational mission for all students in all schools across the School District; and

WHEREAS, The Enrollment Data Analysis process was designed to lead to recommendations to stabilize school enrollments to ensure a rich curriculum offering and to adjust boundaries, expand, initiate or close programs and/or schools, or change the underlying structure of the school; and

WHEREAS, The process analyzed data on each elementary school that was collected in School Profiles and undertook an analysis by cluster with questions asked of the cluster and school administrators based on enrollment declines, capture rate, and density of classroom use within the buildings; and

WHEREAS, Based on the potential to maintain and improve academic performance and also to realize cost efficiencies, the Superintendent offered a number of proposals for School Board and community consideration on February 14, 2005; and

WHEREAS, The February 14, 2005 proposals were modified by the Superintendent based on public input received by the Superintendent and the School Board, both through personal conversation, general and electronic mail, and at three Board hearings and a number of individual community meetings in the schools and the Superintendent made formal recommendations on March 7, 2005; and

WHEREAS, The Board and Superintendent support smaller learning communities, but recognize that the schools recommended for closure are all very small both in terms of Portland Public Schools and national research on best practices, and administrators of these very small schools face a number of unique challenges to effectively meet the aspiration for a quality education for all students which challenges are exacerbated during a time of budget austerity, and which include:

- Limited flexibility in staffing;
- Limited ability to offer complete programs;
- Little flexibility to address the stress resulting from enrollment fluctuations, declines over which they have little control;
- Lack of flexibility with teacher and student grade level assignments;
- Little flexibility in student supervision;
- Limited opportunities for teacher collaboration on grade levels;
- Additional teacher responsibilities spread over fewer teachers; and

WHEREAS, The closures create larger schools, which are still small enough to offer a strong sense of community, personal knowledge of staff, students and families, yet provide greater flexibility in each of these areas; and

WHEREAS, Depending upon the level of funding received from the State of Oregon and with the pending expiration of two local supplemental funding measures, the District may have to reduce ongoing expenses by as much as $35 million for 2005-2006 and $47 million for 2006-2007; and

WHEREAS, While the specific savings from elementary school closures vary based upon the cost of operating the buildings and the alternative uses to which they are put, it can be stated that:

- The expected annual savings from standard support in closing Edwards is $160,000 and the annual savings from operating costs is approximately $80,000;
- There are small savings in nutrition services and small increases in transportation costs;
- The estimated annual rental value of the property is $165,000, bringing the overall potential financial benefit to closing the school to approximately $400,000 each year and recognizing that those savings will be somewhat offset during the first year with relocation costs; and

WHEREAS, The Edwards facility is one of only a handful of PPS schools that does not include a gymnasium for physical education instruction; therefore be it

RESOLVED, That the Board of Education directs the Superintendent to close the Edwards Elementary School building and merge the Edwards Elementary School program with that of nearby Abernethy Elementary School for the 2005-2006 school year, with the newly combined school operating at Abernethy under the year-round schedule that has been an integral part of the Edwards program; and be it further

RESOLVED, That although the expected enrollment of the school would be more than 300 students, the short-term impact of these changes could result in lower enrollment and therefore the School District will commit to providing the Abernethy Elementary School community with a two-year timeframe to ensure adequate enrollment and will facilitate a conversation in the new Abernethy school community to address the benefits of year-round education and ensure the continuation of a year-round calendar that is family-friendly and aligned wherever possible with the District calendar; and be it further

RESOLVED, That the Board of Education directs the Superintendent to review the adoption of a year-round schedule more broadly within the School District, and in particular, to explore the development of alternatives that might establish articulation of the schedule through 12th grade for students attending both of the schools operating with the year-round schedule (Abernethy and Peninsula) starting in the 2006-2007 school year, and to report back to the Board by December 31, 2005 on these subjects and be it further

RESOLVED, That the Board of Education agrees with the Superintendent on the importance of an effective implementation strategy for these changes, and directs the Superintendent to establish an implementation plan in line with the District Procedures for the Implementation of Major School Changes document. *(B. Farver / J. Patterson)*

Richmond Neighborhood Elementary School Closure

3252 WHEREAS, In 1963, the District had 79,571 students and the District currently enrolls 48,029 students with the Portland State University Population Center forecasting that enrollment will decline further to 44,373 by 2015; and

WHEREAS, Between 1968 and 1983, the School District closed 25 facilities and in the past three years closed an additional six buildings, including four schools; and

WHEREAS, By Resolution 2601, on March 10, 2003, the Board of Education endorsed a facilitated community analysis with the goal of closing at least one facility in the Franklin/Cleveland area while preserving educational options available to students; and

WHEREAS, The Board of Education of Portland Public Schools and the Superintendent jointly developed an Enrollment Data Analysis process earlier this school year to consider the impact of enrollment changes on District schools and the need for possible changes in instructional programs and structures in response to this enrollment data in order to maintain and enhance the School District's ability to deliver on its educational mission for all students in all schools across the School District; and

WHEREAS, The Enrollment Data Analysis process was designed to lead to recommendations to stabilize school enrollments to ensure a rich curriculum offering and to adjust boundaries, expand, initiate or close programs and/or schools, or change the underlying structure of the school; and

WHEREAS, The process analyzed data on each elementary school that was collected in School Profiles and undertook an analysis by cluster with questions asked of the cluster and school administrators based on enrollment declines, capture rate, and density of classroom use within the buildings; and

WHEREAS, Based on the potential to maintain and improve academic performance and also to realize cost efficiencies, the Superintendent offered a number of proposals for School Board and community consideration on February 14, 2005; and

WHEREAS, The February 14, 2005 proposals were modified by the Superintendent based on public input received by the Superintendent and the School Board, both through personal conversation, general and electronic mail, and at three Board hearings and a number of individual community meetings in the schools and the Superintendent made formal recommendations on March 7, 2005; and

WHEREAS, The Board and Superintendent support smaller learning communities, but recognize that the schools recommended for closure are all very small both in terms of Portland Public Schools and national research on best practices, and administrators of these very small schools face a number of unique challenges to effectively meet the aspiration for a quality education for all students, which challenges are exacerbated during a time of budget austerity, and which include:

- Limited flexibility in staffing;
- Limited ability to offer complete programs;
- Little flexibility to address the stress resulting from enrollment fluctuations, declines over which they have little control;,
- Lack of flexibility with teacher and student grade level assignments;
- Little flexibility in student supervision;
- Limited opportunities for teacher collaboration on grade levels;
- Additional teacher responsibilities spread over fewer teachers; and

WHEREAS, The closures create larger schools, which are still small enough to offer a strong sense of community, personal knowledge of staff, students and families, yet provide greater flexibility in each of these areas; therefore be it

RESOLVED, That the Board of Education directs the Superintendent to close the Richmond Neighborhood Elementary School program and to realign the boundaries of Abernethy Elementary, Creston Elementary, and Glencoe Elementary Schools to include Richmond neighborhood students for the 2005-2006 school year in the following way:

- Students living west of 39th Avenue in the current Richmond attendance area would move to the Abernethy attendance area (and attend Hosford Middle School);
- Students living to the north of Division Street between 39th Avenue and 50th Avenue would move to the Glencoe attendance area (and attend Mt. Tabor Middle School);
- All other students would move to the Creston attendance area (and continue to attend Mt. Tabor Middle School); and be it further

RESOLVED, That students in the current Richmond school attendance area shall receive first preference in the Kindergarten lottery for the Japanese Immersion Program; and be it further

RESOLVED, That the Japanese Immersion Program remain in the Richmond School building as a district-wide focus option school, and that the Superintendent explore the question of making this school a K-8 school by bringing the sixth to eighth grades of the Japanese Immersion Program to the Richmond site for the 2006-2007 school year, reporting back to the School Board by December 31, 2005 on this subject; and be it further

RESOLVED, That the Board of Education, agrees with the Superintendent on the importance of an effective implementation strategy for these changes and directs the Superintendent to establish an implementation plan in line with the District Procedures for the Implementation of Major School Changes document. *(B. Farver / J. Patterson)*

Rieke/Hayhurst Boundary Alignment

3253 WHEREAS, A boundary realignment between Hayhurst Elementary School and Rieke Elementary School has been a subject of discussion over an extended period of time; and

WHEREAS, This boundary realignment would affect approximately 35 school-aged students with diverse needs, including a large number of English Language Learners; therefore be it

RESOLVED, That the Board of Education directs the Superintendent to provide sufficient training and support to Rieke staff during the 2005-2006 school year to help prepare them to meet the needs of these students, including the English Language Learners, during the 2006-2007 school year and beyond; and be it further

RESOLVED, That the Board of Education directs the Superintendent to realign the Hayhurst/Rieke boundary for the 2006-2007 school year to take a small area east of 30th Street currently in the Hayhurst school attendance area and redraw the boundary to include this area as part of the Rieke school attendance area; and be it further

RESOLVED, That the Board of Education directs the Superintendent to communicate this anticipated change to all households in the impacted area to ensure a smooth transition for the 2006-7 school year. *(B. Farver / J. Patterson)*

Smith Elementary School Closure

WHEREAS, In 1963, the District had 79,571 students and the District currently enrolls 48,029 students with the Portland State University Population Center forecasting that enrollment will decline further to 44,373 by 2015; and

WHEREAS, Between 1968 and 1983, the School District closed 25 facilities and in the past three years closed an additional six buildings, including four schools; and

WHEREAS, By Resolution 2601, on March 10, 2003, the Board of Education endorsed a facilitated community analysis with the goal of closing at least one facility in the Wilson/Lincoln area while preserving educational options available to students; and

WHEREAS, the Westside Boundary Task Force, made up of parents, staff and community members, issued a final report on November 17, 2003, that recommended that "the School District should close a Wilson cluster elementary school"; and

WHEREAS, The Board of Education of Portland Public Schools and the Superintendent jointly developed an Enrollment Data Analysis process earlier this school year to consider the impact of enrollment changes on district schools and the need for possible changes in instructional programs and structures in response to this enrollment data in order to maintain and enhance the School District's ability to deliver on its educational mission for all students in all schools across the School District; and

WHEREAS, The Enrollment Data Analysis process was designed to lead to recommendations to stabilize school enrollments to ensure a rich curriculum offering and to adjust boundaries, expand, initiate or close programs and/or schools, or change the underlying structure of the school; and

WHEREAS, The process analyzed data on each elementary school that was collected in School Profiles and undertook an analysis by cluster with questions asked of the cluster and school administrators based on enrollment declines, capture rate, and density of classroom use within the buildings; and

WHEREAS, Based on the potential to maintain and improve academic performance and also to realize cost efficiencies, the Superintendent offered a number of proposals for School Board and community consideration on February 14, 2005; and

WHEREAS, The February 14, 2005 proposals were modified by the Superintendent based on public input received by the Superintendent and the School Board, both through personal conversation, general and electronic mail, and at three Board hearings and a number of individual community meetings in the schools and the Superintendent made formal recommendations on March 7, 2005; and

WHEREAS, The Board and Superintendent support smaller learning communities, but recognize that the schools recommended for closure are all very small, both in terms of Portland Public Schools and national research on best practices, and administrators of these very small schools face a number of unique challenges to effectively meet the aspiration for a quality education for all students, which challenges are exacerbated during a time of budget austerity, and which include:

- Limited flexibility in staffing;
- Limited ability to offer complete programs;
- Little flexibility to address the stress resulting from enrollment fluctuations, declines over which they have little control;
- Lack of flexibility with teacher and student grade level assignments;
- Little flexibility in student supervision;
- Limited opportunities for teacher collaboration on grade levels;
- Additional teacher responsibilities spread over fewer teachers; and

WHEREAS, The closures create larger schools, which are still small enough to offer a strong sense of community, personal knowledge of staff, students and families, yet provide greater flexibility in each of these areas; and

WHEREAS, Depending upon the level of funding received from the State of Oregon and with the pending expiration of two local supplemental funding measures, the District may have to reduce ongoing expenses by as much as $35 million for 2005-2006 and $47 million for 2006-2007; and

WHEREAS, While the specific savings from elementary school closures vary based upon the cost of operating the buildings and the alternative uses to which they are put, it can be stated that:

- The expected annual savings from standard support in closing Smith is $160,000 and the annual savings from operating costs is approximately $148,000;
- There are small savings in nutrition services and small increases in transportation costs;
- The estimated annual rental value of the property is $300,000, bringing the overall potential financial benefit to closing the school to approximately $600,000 each year and recognizing that those savings will be somewhat offset during the first year with relocation costs; therefore be it

RESOLVED, That the Board of Education directs the Superintendent to close the Smith Elementary School building and to realign the boundaries of Capitol Hill Elementary, Maplewood Elementary, and Markham Elementary Schools to include the Smith neighborhood students for the 2005-2006 school year in the following way:

- Students north of Garden Home Road will move into the Maplewood attendance area;
- Students living east of S.W. 45th/48th Avenue will move into the Capitol Hill attendance area; and
- Students living south of Garden Home Road and west of S.W. 45th/48th Avenue will move into the Markham attendance area; and be it further

RESOLVED, That until the extent and pattern of future projected enrollment increases in the Wilson cluster become more clear, the District will maintain the Smith building and grounds in its inventory; and be it further

RESOLVED, That the Board of Education, agrees with the Superintendent on the importance of an effective implementation strategy for these changes and directs the Superintendent to establish an implementation plan in line with the District Procedures for the Implementation of Major School Changes document. *(B. Farver / J. Patterson)*

Portland Public International Charter Middle and High School
Charter School Application Appeal as Allowed for by Law

3255 WHEREAS, The Portland Public International Charter Middle and High School (PPIC) submitted a revised application pursuant to Chapter 328 of the Oregon Revised Statutes to establish a public charter high school; and

WHEREAS, The application has been evaluated according to state law and the Portland Public Schools Charter Schools Application Review Criteria and Board Policy; and

WHEREAS, The Board's Educational Options and Professional Development Committee thoroughly reviewed the modified proposal following staff review; and

WHEREAS, The applicant received a public hearing on the revised application on March 8, 2005; and

WHEREAS The Board's Educational Options and Professional Development Committee determined that the concept of expanding the international education curriculum and language immersion opportunities is a desirable option for the School District, but that the level of evidence of program viability and financial sustainability had not been met; therefore be it

RESOLVED That the Board's Educational Options and Professional Development Committee has determined that the modified proposal does not meet the minimum requirements in the area of financial, business and organizational plan; and be it further

RESOLVED, That the Board's Educational Options and Professional Development Committee proposes that district staff hold further discussions with the applicant for the purpose of examining the extent and manner in which the proposed school model may be considered in the context of the School District's plans for expanding the international education curriculum and language immersion opportunities; and be it further

RESOLVED, That the revised charter school application submitted for Portland Public International Charter Middle and High School is denied by the Board.
(S. Kosmala / M. Kilcrease)

Addenda

The Superintendent RECOMMENDED adoption of the following item:

Number X3256

Chairperson Wynde moved adoption of the above numbered item. The motion was put to a voice vote and passed unanimously (vote: 6-yes, 0-no); Director Jackson and Student Representative absent from voting.

Recommended Grievance Decision

X3256 WHEREAS, A Level 2, Step 1 grievance hearing has been held pursuant to the grievance procedures in the PPS/PAT Agreement, and the findings of fact, conclusions and a recommended decision have been developed, and the Superintendent recommends adoption of the Superintendent's designated hearing officer's decision; therefore be it

RESOLVED, That the decision dated, February 22, 2005, regarding whether the Teacher Induction Program for Success violates the PPS/PAT Agreement is hereby adopted as the decision of the Board. *(M. Sloane)*

Reports, Notices, Statements

The Superintendent SUBMITS the following items and RECOMMENDED that they be filed for future reference:

Contracts and Agreements
Delegated by Board Authority

Finance Services reports the following contracts and agreements:

Contracts in Range: $2,000 - $4,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
Smith, Donna	Implement Read Well Program	PS53477	06/30/05	$2,000
Colbaugh, Connie	Train Read Well Prog/Kindergarten	PS53478	06/30/05	2,000
Ditson, Mary T.	Write Web Pages/CBSS	2702	02/28/05	2,000
Jensen, Ingrid	Conduct Clinics/Concerts	PS53444	01/29/05	2,300
Maizels Abbott Design Collaborative, Inc.	Design Lunchroom Franklin HS	PS53432	06/30/05	2,500
Language Learning Solutions, Inc.	On-line Language Assessments	PS53445	07/01/05	2,700
Ethos, Inc.	Band Instructor for SUN School	PS53482	06/04/05	2,800
Northwest Children's Theater	Theater Skill Classes	PS53457	06/30/05	2,960
Immigrant & Refugee Community	Instructor for Binnsmead Marim	PS53479	06/30/05	3,000
McPhee, Marnie	Write Emergency Response Grant	PS53458	06/30/05	3,000
James G. Pierson, Inc.	Seismic Lateral Status Reports	PS53437	06/30/05	3,073
Hearn, Dorothy	Administer Oregon Skills Assess.	2691	02/28/05	3,250
Geltz, Jim	Development/Insurance Broker	2692	07/01/05	3,500
Frentress, Jim	Create/Implement Web Site	2715	06/30/05	3,750
Language Learning Solutions, Inc.	Training Class Pak Curriculum	PS53460	06/30/05	3,750
Total of Contracts in Range:	**$2,000 - $4,999**			**$42,583**

Contracts in Range: $5,000 - $9,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
Collaboration Works, Inc.	Assessment of ACCESS Program	PS53449	06/01/05	$5,000
EcoLights Northwest LLC	Dispose/Recycle Fluorescent Tub	SR53406	12/31/05	5,000
Ethos, Inc.	Various Music Studies	PS53030	06/01/05	5,440
Northwest Service Academy Education	Americorp Member	PS53282	12/02/05	6,000
Network Design & Management, Inc.	Groupwise System	PS53453	02/25/05	6,960
Northwest Film Center	My Family, My Culture Video Pro	PS53481	06/10/05	7,200
Total of Contracts in Range:	**$5,000 - $9,999**			
$35,600				

Contracts in Range: $10,000 - $14,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
Napa Auto Parts	Misc. Bus Parts	MR53329	12/06/05	$10,000
Potter Webster Company	Misc. Bus Parts	MR53331	12/06/05	10,000
Del Mar, David	Teaching American History Curr.	PS52625	09/30/05	12,000
Scheurer, Sharon	Speech/Language Pathology Service	PS53462	03/31/05	14,400
Total of Contracts in Range:	**$10,000 - $14,999**			**$46,400**

Contracts in Range: $15,000 - $19,999

Contractor	*Description*	*Contract No.*	*Contract Completion*	*Amount*
Portland State University	Teen Father Support Service	IGA53328	11/09/05	$16,000
Total of Contracts in Range:	**$15,000 - $19,999**			**$16,000**

_____	_____
DAVID WYNDE	LYNN WARD
CHAIRPERSON, BOARD OF DIRECTORS	DEPUTY CLERK